Uttar Haryana Bijli Vitran Nigam Ltd vs Haryana Electricity Regulatory ... on 24 February, 2011

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;:'z~t:r--'. :a;3r'ic_L:§t1.;srie zaecttmi. Wiih r6=.5§3E%»'33T it: fhé-it ii is *1:i*is3-'end? -L:s»;4w* Wm' =»:?4é3.sf::s;L:m§ess the same-: Eif}":{siii.£m ca' >;'e'§v3<:_i:'EcE_E;¢~' if)' an »5:1_E%*aji__-i:¢se'§ 1_s'}1f"sj= 3W-.'_□3:'"_;, in s';-."-=3aiE_tg,';' c;oL;§{§ LE: {:19 :3=.=:afiz':~;;; i§§,«'.£i'=m3':'§Es'3r;; □iE3..i§i'§vE3.£*«§j§.'. as:i_~:a_g=:*§~::uI?u;:'e 1; 2: _'j 'E1?3'a3"E"{3fFd ;;:+e;sr_'=.i, ii thje: _I5?1.□3s'i3§S»SEOf'§: .9? fine ,Ap;se:E!?:«:n: 'that HT mn::.3z=_sme«.r cV3t=a.g;_0ry a*:s:;::r::s«\.»'e>€i" by i':he.Vf:a:='::?1¥ss--§on ' ;';=n_ ;::3r1s'ist£a:';.ii:§.i- an 3 $'"aig'h'_e:' sEde--. Thee {Z-C-zrmnjisaiorw rec_mm:iEed the _s,»"a":2>e.3ar :3£}L}8L-GE? and m_Li;'~*f 'rm: iiésregard its-::« ;:s.:'::si§eci:i-xzm 3r':'§§s:ji{~_e f:j;~_y'1i§':§si}3 i1,i'i§'i?E,§,;' wii□ith £;3j'n':§ :'n:~3(:I{~: 'cm mfzéz {$3333 mf'a:3_jz.:3ifm£ér1i5 \:1'f'§§'ii:3 'pre:~.rE_<>us:

W; 'T%i;e:: €3x:é_rram.Ess§'on"'a: 's'eaaoné:1'gs f::»:Lm<$ in {N35 ::.:z'c£=ssr 'iiI.zg:3=,;_g;_§1--ed' are faiéewe:

.>'--%ijc:ii%'i§{3:--1a§ 3955:: {'1-T2£'§Li£2□C¥;i'2 Eevvei cf 1% by Ce'm'm1sa§::«'2': firms' its >:sup;o*ort' from me fact. tthai {W Commisgimn at iE";«:»3 szznwe time rséiowecsi a ciQns§'a3erab2':e ;«3--mmmt of cayaéiai ex;3endé'tu.re which if pmperiy incL2rr=;m': ». ..3 Q' ;.= ~.a.«m_,'=_£._ai:' ::'-<2_:a_u=£t in e'ffic=i'er:t.

--o'p§?:¥"a€i=Oi": me --r;1'i».sir§;*,:z.\=*r:é=m~; ::.gzs:i-em --a§m_$ 'ir:w--£:2=.f '::E1'a';-:,- 1'.;=ami'm:3xs':rs s*:€f'%tf:«a Appeiiaizi fmfm <?::s'mtf;--: is --i£',='ma, we bazatk wai:; :;;E've.z':. be-' i:;";sas'{3t:mmi_s--s§0;--'; so ta ;\:_»¥3m.w' 'the actgsai £';ua~a.*:;t_i,a:7n zaf :::ai.%:-- to ihg': ;;:r3~I_'::2.8.::itas:-exai i"".

e.

a§;§'iauitu_e;e .c'rms2_am':=;-':t'ss rzmziw.' 50 that "s:;:;:s;;'::i_y ~'C§,?':f13$"§i3ffE'L(7§ rmir' t:_ua=m't1§i'i€~:i ;=,_a§s"u;é. was-' aii iiéwe t3:st§'s-xata□'figures.

e'if$'§3L;'§TE,i'3□():i'§ azgriéuiturm we: --re'5:i.§§;r '>§¥":zé.=--_ ' . '~.

> ;_z~:im <'.C;'=--c:.m.g::-;,:::'1:;;--'_s=:hzseaith. "me :-;:s'n'1w:3:ur:':--c2f--ag:ri::a;2.I§:me ssuhsijdly be pa§i:.i -by th.;~='2 *C:'-.-<::x»-e,s".rV:.rV_t':.~s:-ant was (My and Vta§ie'n mate of';»ma" maze a:«:timai=irag az3Q'iii0i1e?:E vaitxnxe on éczczmmiz samajiiioswai W'; Seas s'€ec§w:'E§On.

Adtiiiizznai r*:;=.'~v~.r:>;m.:~<3 an £~.%CC.C3LH';i of adci1t§L=n:a§ saiass has in 13;; iéawkved 1io2',hssi2 ii; the mn--ag.r§c--u§tu:'e setgw. C'cra'nm§s>3£cn div$?irz:}L--:ied {he :a::i::iiét§oz*;2:ai ;::mw:ar-- ta: 3%; {□e Qffhe 'c:3:'ns'L:m'ers on pm_p.o.ri.ao::: baaiif... 'Q:'~,r '3Ll'{31"s= ?'53**35?5iQ 'i%"i£~3 .St;sb?::1i$--sie:-;.5»-- (3% 'f§3e~ iiearnad C34:Z2sL£□8,€§_§ far am ;3.3I"iie.E3;, id aazasicier three %s}ss;:e:e~ i"\ 'I:§_c~3i%i:s':::?:=.=';i£=:ci at jg: '€31?' 'E§}i§~ jud_j<;;:72e:1_t: in :;~0frs3_:3:'e§§1e:re:»3.i;ve' n'za:~\.ne:'. 'I'M? Téuiff Pzzséicy of *:m'.»; 's'E3"r.m;~=arr1:'r\.<3:r;i" of Endia fra:n'zes:i La-m'.~:i-er sezztims 3 of Ei€:~:tric§t3i Act 2083 have '§(>.Lf:rfD¥d

-- 'bésacimssz 'Ensme a.vai§a£:>'iéii*~; of eivazsirécéty ta r'c::2'ns2.s'm=:sra evi re3;s.:mab'$a amtx' ..::.a:n*1p§>,"£i'ti\a'Ea- rates". :21» E-".:1<.au;:'e f§naVn=c§ai xriabimy' of me =se2c:::3.r e::m:! a□raazi. mve.<.=.i::1eLnvt's., cg) P52'4:it"§.'e_':;i€_: trazis_par;2mcy; ¢::.:_-Miatency amil ;}i'€>C§§:37fri3;'§§§§iy:

s'ni1szérn:iV2«-3-'A pe='s*ceptisé3ns----r.:-f re-'g:.--:£a--tmr'y risks, M _;,a ?:"¥'.-{},□f3Q'iT§§ 'jc:;m~1;:3eiE_tEgzsm _-e§}t"f§::.E_:a='nr:;.(in r3;)er'aEér_yh ami ";~rw.'*:;a".:r;¢3xz{e:':~.:'e.:tz't "in 'c;'L2a'£iI:y §s1;::f.'§§;i¥y;

.1' ix .:€3:ac_tm'ra' 'n'§"□_*.'e E§ge:::r'i'cii'y Ac._i'2£}1Q3: --ihai_ t□géaisv wiiifz wiff i'€)§.t:§i2aT[E'£3t?:L~; im:-er«aié;:.i' §=%F'Q\.«"§d~:i=S §§'.€'iZ=-"?D§§'C>3.r«'§'F"'f§3:

"~?_i".Q.ry a_;:pme3_:;hes-- awevss V_i\.L§'E"§'.3L'.}§'iT$3';'§.£.VjE'§i3 em.-;%. :13?

Miiie _§3.;~;=r1sz32r*a3i3é'ta's'i_,. E:am'3riri§--:ssia=a';, <3:':s:£:'§f;3Lzw:'s'<:3rz' a:m'#c2 at-.'§:§'::i;¢ ca? s2¥_e¢:s=§::?nty G-mdurgted =:;mmne:rc=iza¥ ;33'i□Ci§1§ei§§ km faaf§<3'r'$: W§'zjié:é*._ --'w(;:u.¥a::i {:'?!":i3Qi.£§"E§~f_;§:$' :3»: *;;;.3&iiti._on= '23=f'f:e.i&§:zf;A€£:§e.',-- 'esonovrniziai. -of the :'e.<s::s.:.s:2*~::s3a, good §.:*g_>:*.'c;;*_s7nasf:'ct93 ;t:§$i'r.jE_rv*:1,1rn._é:wse'estrr1⋼ arm' at 'i'§'1.§: s;:=.;*:~...e cs? ::0::15um§e:rs" fm:t{~.

":iT:s:m_*::\.«-- r:=:sr::3'w::*.y' cf the :23?" e'ia'ctri¥:ity in 3. :€e::--'s50nab§e .*§'mn:r;=eé':' =i§1i:> We p;'r1Em:i;:«.§es; s*e.:a.r¢'an:§_§;r':>'g,§- a-.~'.f_□n§anc:y in perf'm:"aa.mce; :3_;&~:_'~ .;~:_»he tariff p:rogIressweig; re□ects the (3013? sLu;:.p§y of y ::m.:i 1a§--$Q cross su:tas§d§es~i:1.the manner ;a3£ss~.:c:*:r%z: t

--;=;::e::i.fée<i-- by 'me Cc.mnx':'s:;*-:4ia:1' 'i3«'t'sc:d.t.--zz:_%i'§_;::=_m' r:-f"€:*a_nsm'§g;s_Ec.;r: and:c§§;§:;i§h_u--fias'; was to ;3=3'rn".:iss.§§*;si'z=.>. t:>'¥.=r:,=._af;.'=.j=1'.§':'-.§r~3.. §ji'mi'§'--.ar?i:3 :'s;;»=;iLIs::.tic::'é in .«::'a.ss sigsbsicéy 'the. ?';.'=' _ ..*::i_xu:=.s of E.¥'~3-C§3'§.Gi'ITy' .E%c:t'x'-.i<:£_ia::wing: '{h§':- £:□t1:._mt.?'iér11g Q?' It-□at M the 'én;ité.re;~<s:t: cf the t::22n:=w3's:=2v:'%a: and Em. Cs1"It%*:e3 --utiii:y' ;>.<:vw_a<;:' ~;a<3tor* gets bOGS'§f6:?f.'§ =;.:_;1:.. Him if task. fa: W3: o::de;' da%ed--:2¥3"' ?\l'1x'J.'~«'t9m?3=':'3é*--"= 253138' WE-.~ □nd '1 § (0.

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w_;"xc;_--.a_z:ie'a_ ia_IigeEy _L_:;_a.'=mt.=--,>3*'.e;a*.»5;=a:i.. _i1'3a:mn* aissieyv w;e:::¥. 11:3?' wr {he-.:3'.v%:~2';:Vaga u;,:m-;;:ng h'aju:r::s at %:.%":;::..> w'ee'i;%- 2:1:-«gay e.g.rémaimzfa_.¥' xvaii a_:«on<sL2:m..a:r--:s E-mjnjz _"ns:>u_;stg in Y if-_ :5,.v5;«é*3_= %1_c>:_£r--s_ in FY" 2G1C:8+_{3--*§. .iI_'_;br:>s'm=e;.;;§on E!ji§:3 wsaamesci 't§1.s't' me ;'_m§m=mtiCity-- sf" 'the r"s1sa.='zEs.~5:"»:-s=i.n§= a'=1'£3<.=3d§=:t€§ 1:3 taer pm beyarnd .am; qu.e'--;_s;fi:3:*a_. be:.:.a;;:.se. ia'r7g3eé .num.be.:i' cri?' n=:ss.mz-is e.§iih'%=r <':£:.&=.'_ <::-"r er E-hey □e'-.* air ihe miss' rem-z',»:3iin1g.'%.mra.=;s_ u.st12*a§?i;e;:i3¥3s=. A3 g--r2a,;i;_.E*:1.ha5.; ;i:~;%p=JE'a:fi..r~2_:<;é_ ~1::*;s. show. time.' sii3sfn;;_ 'tj:E:s=:.ri_ in agx'ié'L□_Lij§'a3§_ u_n':me:te'_s'eI£2' ' .-5 vzseii (;--:'JFI:3Ls£T¥'_:)'i§<)$'§ graduaiiy fmrn Ltha yeiar '2:302-- ,:.3 'uv%'m;t:

-com2pe§i€2d {he C@mm§s;s§0:n is scrut'mi:;.-□e the Li£Ts'i&?§fy'§mg ad~di§icna'i 'mad factor dam in' the Isneteréd ag:~i:cu1%ura§ mzzsaznwpticn win'-oh 'farms; iihae basis cm' the: ;:>r'0jeméng ur:r'm~:~tered azgric-uiture tube weii consumjpticm. The: ARR of t'n.~:~:v A;:s§pei§ar:': En the :'iram:éa'E year' 2i'3{}?~G8 was based cm :i.isir§§3s.;iiore □oss §=.=3v=3i of with aciditiazxai red' smn by anci: Lithe C..On'.m'§i:7~;E3'iQf'= basesj its caicu:Eat--ian<3.. for '3.*{~sr;a.;:"' rat was ievstel i26%. in .5Tuch' a ths 'C:.:31*sW;:*:zivs.~3.ii:9*"1: fi':<e2as3Z. di3iriE3a;.aticsv:1- 395$ 'ET€fCh,.$C□_{3s"1 mum {$13-1-gsxsszi at' vamga ad{§it.i_c~_:'1z:2§ r*aas.r--'em;s'e 23;_3;§_r--<_.1x's {U _ 'mifman vshiah was ax';3eeied be' ge:ne_ra£ed an

3.C:G10jL3m of 1"}-3 '(?§v§.'-3-'(}°'§:'i3L3.□:Ii'1 ioas. i'a~:L<j*L:eiEt:»'ra. :3.-suécé km u~ti§i:/.eA-:3' 'gt:

p;:a:""E;%3=' 0:'? meat reew=.3sme Vgzap□ef'e;'s'iLso:":éezx' in s:~=.:Q3iiy ef' '..awea* to the ag.r':%:;.L1¥{u_r.e co;r1su:nez's$ the: {3a.r'mniss=écm.--a§i0cAa:e2d gafddi'-'£iGna.§ cg': :ax;-mm-rat' of a,0Id:Eso~na:§ rez.-c1'Lsc_i§ie.n §135~:s-- ii}. n<::;"'= ~EE'L§§'i'uT¥?$ setiisssr which we do mi firm in mjjusi. ,*»'».;;:§ps§fia'_:'3t u=n=d:er m§s<;cm.::a_e:si:E~o.n than if ad€i3iti?:s'i11a'i is:

«:*r':;:':*.sH:§anateévy .s:E%oc:a*;s:::i_ to the agricuétm-2: +3ec:'*:~<;--r 1-asgij□ea-st iiI?'t€.?'e wfzi: be aazéaziiiémrwtai vsasbmkiiy vavaiiaizzie f§"f;m1 □ue. C3;Q\v'.€:i=:"r*m'--1e;n'f.; .p'emaps mi.s';:ai;ac:s::5. Eémed an the Ianmsai mad ffac'i.~::_; the i3'o,m--mi:,as§§:;7r; deter-mmec3 the 'r;:ng;1_t--EmLé'm 333%? \é1<3.Et§m'i£°i '£0 'ag<r§::§.£.i}ia_;Aa?e usbe wrz□l c:_€}r}:=;L£_§--'x1§evr:"7; as $3057? "i§:"zEs_s'§s would he?' .sc<:>g;>$ 'fur:tE'3er' 2:). a§i.a.c:at_e any Ta.dg:*:itLiez*:a¥ 5533 7:0 'ms :::.233:sag»:3ryga1:' mu: sf the cm a:::~::oum -of 13:.

'*2 --:€§s;i:_r§'i:sz,2;_fi:*:.z*s msas: ia:'g_e'~;i'; in fact, is h;.}*;_n:Ei;¢ mx'-3:5 ¥3»i°«'i':'v'€E:8E1 '"I'3«'f«.; re□nciian in disi:-éb:.:t§t:s1 {ass and'Eos;s ts? subgiciy, Tm a-1r.ic.i:'téc»nai 1'-:1'; .rea'u::ti<>n in *4 (Ir i§"s'□>:§s'£:_:éi cf the hsatih at' the Lstiiiiry so that the revr3:we gap we find=,. ssaie xraiasnxes for r§cuit=:.rr*:aVE*i;:i:sa wen -caénsumfars' is «ca□cuiated? an the .f-KL3'-"--- «:3? tin? :w1ai*-med €L1if£3e"«'s'<?'§¥ Go£.':$L§miE.°£'S_Z and (Z'40t"§Sf<€f£';L§€~:i'i'?§}*' 5§'tQL;r'§'£% -:3'? :a:;:pj_:>i_§,r pee' _:t;-um,a d_23},r-- is mriw-;_ at for the mreie Craiegmjg the ssa;m.e: i3_ ..3;:;3_§'§ed {~53 the pro}e1c.T~;--e:d a:::mir2=1c't'e~;? §:';2as:;:'* fhe: unrrxete-u i':sai§,=_§;3§'y in 'E3i'I'§\r'€= at a ;3m}_ect§3s:-.é \:g=;§'u~_:m'. Tiv.ije'2':a=frcé;s'se, the af§_d§T§Css1§3'i power -as it wmzédx §T}fE.°~ nwatila' ;a.'fx.=f:':3'%¥;'.«2--ié.2"Is.=,-_--':«.:«'n mi. :3?' r:aér,i.:.s.t.:*c'§uri mrozsid not ;.:~:2»re:<E2.s1E~;s.=r is-' the R3 ags'i_:n,.s'iiu:'2_a .cQ=nsL:m_e's's;_ am: E3<')<Z'x'Z1'_?-i'.'I'!':*'s§3'[é,i giiv-an. a :e;_~i:an_a:_ri':1 i~_:1H€i*:_1€_-;a {:_¥'ia_(:)':~:';3n--r.*I d'i$L§:':.{e._§', Cc«.n1m.5$vs.§m"h YhcmgE":t it fit is. adc£'é€ima'%t3i r'¥3ws;n'e;a.e to the DG□a.g~$"§CLi§'f.L£f€. Te repeatadijétionai newer as itxnmuid be axxaéiaéavie cm a:;::cmrn: -of h3ss.:'.+3duciio.n wiii not czhange the suppiy of power is the 21g'r'i~c.L:.EtL2re sector'; mar it Wm havé any heéarérag an ihe. ;addit:ioz*:ai ioad fact-01' for the metered tube weii L':€'m§L£i"n€':'t'S t'i';rs~ Lznmezferesci iL:k::»;*: weii r.:cn.sumers; Thirdiyy we fit} not v□vci' ary .q'isc.r§mEnatio*n in the e.st§n1atinn of the to HT ca:-rsume.r categc> ry becatme the ailocaiiun its me man- agricuétusre meni was wiiihczut rsriejgucziice' 'to any ether v::m'=.&'»a.U'□ea{ aategory. it is Lsncieniabie 'mai in s.«ug..:_:.::g; takes 1;;

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tz;:r£.;§l~:;:?%f}<". W' f§;;:1.a§i--Ln7E;--:S<3C.i&i7",. WEB it wa)]1';_¥~5_5£ '*:)e':--"'3ra:é' mg?' , ,, x . _ . . . . \ §, , §.

ihaal :§_.L._:':3§2'Ey =0? .r:_r2we=r ta agricL:_§tus'-.<:.< v.s'<<_§¢t:~.-r' . .

\._<_§:._. *g=§'i§ii{1g_t:E*.=c": it-ir.=._m-T the '§§2$;.'_§g;g.-2; Zf»:,'\'ui. i.sr=.<fir_:2r' -'t%?1:«:~3 ::¥r*::Lsvrn§sis:n-53$ cm.-'u=i(3 nu: thee; £:m.am~_:s3f' Eli is siisa' su7t:~mié°ét' . .e°~J£%i3 tiwugifz' 'E§}.e3--_;:2rai§i§a3:_n im:,>; 1'-.i._t'_i.§'i%:._;-"

-:;;Ls-bmétitecé an fai'm.za, i-E--':s3-. 'eiioiey-_h,a;~_JEI3§ mmcgs ¥z~3fijsi~s'1Ez': year _ 'i'--\.i'£i;:1'\s*.§e':1'-i'fs'€.§§'_,_: the U--'E'iia't}.=' 'w.-3;-22 moi givaii p'e.s'_§':'s_-zii . St} <--'JI:§.L§§i<:¥i mist hzwga -«E:-earn EEC:}'1¥i:Z.'?u1i'ée'i "in .=s§;t;:m :3? ir:1m..:'>;t%zs'=.... o"«:a=:.s' and ii' open tat; ihe A:J{,sei¥ar1t ic: agsprmach the {':am'ms's3s§o:1 dusrimgg the. tram us of with aemai data wh:E:;§is L2--nde:'sian.dai>§y avaiiisbie wiihths .é\ppe.%%an£; as such i?'1sE3§'E3 is case of e:ar:";a' gtzrt-e',i:t.a<:!?i:':<f~2 bang to the by mg -order impugtaexi Having thus mmzsiziered we g:'r.:um's of aappeai, we fins; no éc_:sti's'ia--i;«i:2 a'ne:r'Et to Enie."fea'€: with the findings of the t;';;{,smrn§.ssa'o;w, .v 'tats aaz□éése .2§.g3{_}r'C3N€3§.3' Vfig_z.:n<~:= and *1;%3FiE:5E§3§Ty' the M. We -:3éi+:smi'§:~:s--'iiw;*a§>,. a:;?;';:e:aM£' wit§1s:.*e'z.=:i: , §J_us*ti:s~e. i§3.:S_:_§.a&%3'§ {Emu □aakesh §<§a:'h_§ J§3§§§;i:g§..A§*§$é'%¥§ □xer '"é'ie::§*:n§£:a§ memhar □aieti 2éf*f'Tf§e;§rzsTarv. gm 1 i§m:§ex: Re2□ra:bi§'§§ m□ah_§e

--P§§§